

25CHCV04023 25CHCV04023

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-09-10

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DEFENDANTS'

DEMURRER TO PLAINTIFFS' COMPLAINT

Demurrer filed on February 19, 2026.

MOVING PARTY: Red Energy, Inc., Royal Express Delivery, Inc., Sunoil Retail Group, Inc., Smart Place, Inc., Sergey Vershinin, and Tatiana Vershinina (collectively, Defendants)

RESPONDING PARTY: Bleau Law Group, Inc. and Thomas P. Bleau (collectively, Plaintiffs)

NOTICE: OK.

RELIEF REQUESTED: Defendants seek an order sustaining their demurrer to the Complaint.

RULING: Sustained with 20 days' leave to amend.

BACKGROUND

On November 10, 2025, Plaintiffs filed the Complaint against

Defendants, identifying claims for breach of contract, open book account, and reasonable value of service. (Compl., p. 1.)

On January 14, 2026, Defendants filed a declaration in support of an automatic extension to respond to the Complaint. (Alexakis Decl., p. 1.) On February 19, 2026, Defendants filed the Demurrer and Request for Judicial Notice. (Demurrer, pp. 1-6.)

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the Court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

DISCUSSION

Request for Judicial Notice

Defendants’ Request for Judicial Notice of the Complaint and proofs of service is denied as unnecessary. The Court may review its own records. (RJN, Exs. 1-2.)

Breach of Contract

Breach of contract requires a contract, the plaintiff’s performance or excuse for nonperformance, the defendant’s breach, and resulting damages. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) A written contract may be pleaded verbatim or by attaching and incorporating a copy. (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) Its legal effect may also be pleaded. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Here, paragraph 9 alleges a signed promissory note but leaves the date, principal, and interest rate as “[Date],” “[Amount Owed],” and

"[Interest Rate]." The referenced Exhibit A is not attached. Paragraphs 10 and 11 allege nonpayment of "the amount due" and damages of "[Total Amount Owed, including any accrued interest]." (Compl., ¶¶ 9-11.) Without the note or allegations stating its operative payment terms or legal effect, Plaintiffs have not sufficiently pleaded the contractual obligation allegedly breached.

The demurrer as to the first cause of action is sustained.

Open Book Account and Reasonable Value of Service

Plaintiff's "2) Open Book Account" and "3) Reasonable Value of Service" claims appear only in the caption. The body proceeds from the contract allegations directly to the prayer, without alleging a book account or services rendered at Defendants' request or for their benefit. (Compl., pp. 1-3.) The purported second and third causes of action therefore fail to state sufficient facts.

The demurrer as to the second and third causes of action are sustained.

Remaining Grounds and Leave to Amend

A challenge to personal jurisdiction based on defective service is raised by a motion to quash, not a demurrer. (Code Civ. Proc., § 418.10, subd. (a)(1).) The Court does not reach Defendants' remaining grounds because they would not affect the disposition.

Leave to amend must be allowed where there is a reasonable possibility that amendment will cure the pleading's defects. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) Here, Plaintiffs may cure the identified omissions by alleging the note's operative terms and facts supporting the purported additional claims. The Court therefore grants leave to amend.

CONCLUSION

Defendants' demurrer to the first cause of action and the purported second and third causes of action is sustained under Code of Civil Procedure section 430.10, subdivision (e), with 20 days from service of notice of this ruling to file and serve a First Amended Complaint.